

The McAlester City Council met in a Regular session on Tuesday, August 12, 2025, at 6:00 P.M. after proper notice and agenda was posted, August 7, 2025, at 11:50 A.M.

Councilor Gilmore gave the invocation, and led the Pledge of Allegiance.

Call to Order

Mayor Few called the meeting to order at 6:00 P.M.

Roll Call

Council Roll Call was as follows:

Attending: Levi Gilmore, Robin Woodley, Chris Stone, Randy Roden, Billy Jack Boatright, Kevin Beaty & Justin Few
Absent: None
Presiding: Justin Few, Mayor
Staff Present: Ken Wimer, Asst. City Manager/Economic Development Director; Adrian O’Hanlon, Public Information Officer; Lucky Huff, Utilities Director; Sherri Swift, CFO; Jayme Clifton, Community Development Director; Doug Basinger, Community Services Director; Tabettha Howell, Code Enforcement; Rosie Carshall, Code Enforcement; Justice Adair, I.T. Computer Support; John Tyler Hammons, City Attorney and Cora Middleton, City Clerk

Citizens’ Comments on Non-Agenda Items

Steven Belcher, P.O. Box 1601, McAlester addressed the Council regarding the condition of the United States flags that were being flown by the City and the Executive Order that had been issued by Governor Stitt regarding the passing of Governor George Nigh was not being followed.

Eric and Janie Suski, 1118 S. 14th Street addressed the Council thanking the City for addressing the drainage issue that had been affecting their property.

Stephanie Ward, 402 Edgewood Drive addressed the Council promoting “Sober October” and encouraged the City erecting a “Pledge Wall” for the City of McAlester.

Mayor Few informed Ms. Ward that since this item was not on the agenda the Council could not discuss this with her. Manager Andren stated that Tourism Manager Billy Sumner would be the employee that Ms. Ward should contact regarding a location that a “Pledge Wall” could be erected.

Dusty Swing, 312 W. Monroe addressed the Council for the City’s quick response and removal of trees after the storm.

Consent Agenda

All matters listed under the Consent Agenda are considered to be routine by the City Council and will be enacted by one motion. There will not be separate discussion of these items. If discussion is desired, that item will be removed from the Consent Agenda and will be considered separately.

- A. Approval of the Minutes from July 22, 2025, Regular Meeting of the McAlester City Council. *(Cora Middleton, City Clerk)*
- B. Approval of Claims for July 16, 2025 through August 5, 2025. *(Sherri Swift, Chief Financial Officer)* In the following amounts: General Fund - \$244,866.52; Nutrition – \$981.20; Airport Grant - \$17,834.99; Educational Fund - \$47,190.12; Tourism Fund - \$154,231.80; E-911 - \$8,594.39; Grants & Contributions - \$120.00; Fleet Maintenance - \$19,156.50; Worker’s Compensation - \$1,750.00; Dedicated Sales Tax-MPWA - \$500.00;

July 22, 2025

Regular Meeting


Cora Middleton, City Clerk

Child Abuse Response Fund - \$2,645.48; Stormwater Fund - \$4,172.37; OWRB Debt Fund - \$719,358.93; Infrastructure Fund - \$12,957.24; MRHC-Cancer Center Fund - \$47,190.12 and MPWA – DWSRF Projects - \$150,282.02.

- C. Discussion and possible action to approve an aircraft hangar lease between the City of McAlester/McAlester Airport Authority and Tal Light. *(Ken Wimer, Assistant City Manager)*
- D. Discussion and possible action to approve an aircraft hangar lease between the City of McAlester/McAlester Airport Authority and Shelby Peace. *(Ken Wimer, Assistant City Manager)*
- E. Discussion and possible action to approve an aircraft hangar lease between the City of McAlester/McAlester Airport Authority and Jeremy Tolman. *(Ken Wimer, Assistant City Manager)*
- F. Discussion and possible action to approve an aircraft hangar lease between the City of McAlester/McAlester Airport Authority and Extapa, LLC. *(Ken Wimer, Assistant City Manager)*
- G. Discussion, and possible action to authorize the Mayor to sign a Resolution directing the filing and notification for the publication of Supplement Number 8 to the McAlester City Code of 2017. *(Cora Middleton, City Clerk)*
- H. Discussion and possible action to concur with Oklahoma Mutual Assurance Group (OMAG) recommendation to deny Tort Claim No. 217242-1-JM filed by Mariah Douglas. *(Cora Middleton, City Clerk)*
- I. Discussion and possible action authorizing the Mayor to sign the final Change Order Number 2 for W Brown Enterprises Inc. in the deduction amount of \$49,718.95 for DWSRF Project #14, West Street Distribution System Improvements. *(Lucky Huff, Director, Public Utilities)*
- J. Discussion and possible action authorizing the Mayor to sign Change Order Number 3 for S3 Construction, LLC., in the deduction amount of \$35,409.31 for DWSRF Project #10, Carl Albert Waterline Improvements. *(Lucky Huff, Director, Public Utilities)*

Vice-Mayor Beaty requested that Item “G” be removed for individual consideration.

Trustee Boatright moved to approve Consent Agenda Items “A through F and H through J.” The motion was seconded by Councilor Woodley. There was no discussion, and the vote was taken as follows:

AYE: Councilmembers Boatright, Woodley, Gilmore, Stone, Roden, Beaty & Mayor Few
NAY: None

Mayor Few declared the motion carried.

Items Removed from Consent Agenda

- G. Discussion, and possible action to authorize the Mayor to sign a Resolution directing the filing and notification for the publication of Supplement Number 8 to the McAlester City Code of 2017. *(Cora Middleton, City Clerk)*

Vice-Mayor Beaty asked what this item was for, there was not very much information.

Manager Andren stated that this indicated that all approved ordinances had been codified into the City’s Code of Ordinances.

Councilor Gilmore moved to open a Public Hearing to address a proposed ordinance to amend the FY 24/25 Budget. The motion was seconded by Councilor Boatright, and the vote was taken as follows:

AYE: Councilmembers Gilmore, Boatright, Woodley, Stone, Roden, Beaty & Mayor Few

NAY: None

Mayor Few declared the motion carried, and the Public Hearing was opened at 6:12 P.M.

Public Hearing

All persons interested in any ordinance listed under Scheduled Business shall have an opportunity to be heard in accordance with Article 2, Section 2.12(b) of the City Charter.

AN ORDINANCE OF THE CITY OF McALESTER, OKLAHOMA, AMENDING ORDINANCE NO. 2812 WHICH ESTABLISHED THE BUDGET FOR FISCAL YEAR 2024-2025; REPEALING ALL CONFLICTING ORDINANCES; PROVIDING FOR A SEVERABILITY CLAUSE; AND DECLARING AN EMERGENCY.

There were no comments or inquiries, and a motion to close the Public Hearing was made by Vice-Mayor Beaty. The motion was seconded by Councilor Stone, and the vote was taken as follows:

AYE: Councilmembers Beaty, Stone, Roden, Boatright, Gilmore, Woodley & Mayor Few

NAY: None

Mayor Few declared the motion carried, and the Public Hearing was closed at 6:13 P.M.

Scheduled Business

1. Discussion and possible action to authorize the City Manager to negotiate terms for the sale of Raw Water to Blue Mountain Energy Storage. *(Dave Andren, City Manager)*

Executive Summary

Motion to authorize the City Manager to negotiate terms for the sale of Raw Water to Blue Mountain Energy Storage.

Manager Andren addressed the Council explaining that the name of the company was Black Mountain, not Blue Mountain. He stated that the City had been approached by Black Mountain Energy Storage regarding the purchase of six million (6,000,000.) gallons of raw water per day. He added that this item would only authorize him to negotiate the terms for sale of raw water. He stated that a representative from Black Mountain was at the meeting if they had questions.

Attorney Hammons stated that this would come back to the Council for final consideration.

Director Wimer stated that he had been involved from the beginning of discussion and this would come back to the Council to be finalized.

Carolyn O'Brien, PE Director of Permitting & Entitlements addressed the Council explaining that she had been working with Pittsburg County , KEDDO, the Town of Kiowa and the City of McAlester to establish a data center.

There was discussion concerning what the data center would be used for, if it were connected to the other development in Atoka, if this would be quieter than the Bit Coin data mining sites and the difference between air cooled and water-cooled systems.

A motion to authorize Manager Andren to negotiate terms for the sale of Raw Water to Black Mountain Energy Storage was made by Councilor Gilmore and seconded by Councilor Woodley.

There was no other discussion, and the vote was taken as follows:

AYE: Councilmembers Gilmore, Woodley, Boatright, Beaty, Stone, Roden & Mayor Few

NAY: None

Mayor Few declared the motion carried.

2. Discussion and possible action to approve an Ordinance amending Ordinance No. 2812 which established the budget for fiscal year 2024-2025; repealing all conflicting

ordinances; providing for a severability clause; and declaring an emergency. *(Sherri Swift, Chief Financial Officer)*

Executive Summary

Motion to approve the budget amendment ordinance.

CFO Swift addressed the Council explaining that fiscal year 24/25 had ended as of June 30th but Finance took their time to ensure that all numbers were correct. She then reviewed the three (3) exhibits for the amendment.

Mayor Few commented on the certification that she had received and congratulated her on receiving the certification.

ORDINANCE NO. 2850

AN ORDINANCE OF THE CITY OF McALESTER, OKLAHOMA, AMENDING ORDINANCE NO. 2812 WHICH ESTABLISHED THE BUDGET FOR FISCAL YEAR 2024-2025; REPEALING ALL CONFLICTING ORDINANCES; PROVIDING FOR A SEVERABILITY CLAUSE; AND DECLARING AN EMERGENCY.

There was no discussion, and a motion to approve **ORDINANCE NO. 2850**, was made by Councilor Boatright. The motion was seconded by Councilor Stone, and the vote was taken as follows:

AYE: Councilmembers Boatright, Stone, Beaty, Gilmore, Woodley, Roden & Mayor Few

NAY: None

Mayor Few declared the motion carried.

A motion to approve the EMERGENCY CLAUSE, was made by Councilor Gilmore and seconded by Vice-Mayor Beaty. There was no discussion, and the vote was taken as follows:

AYE: Councilmembers Gilmore, Beaty, Woodley, Stone, Roden, Boatright & Mayor Few

NAY: None

Mayor Few declared the motion carried.

3. Discussion and possible action authorizing the Mayor to sign Change Order Number 1 for Lone Hickory Cattle, LLC., in the amount of \$40,000.00 for DWSRF Project #8A, Stonewall Railroad Crossing. *(Lucky Huff, Director, Public Utilities)*

Executive Summary

Motion to authorize the Mayor to sign Change Order Number 1 for Lone Hickory Cattle, LLC., in the amount of \$40,000.00 for DWSRF Project #8A, Stonewall Railroad Crossing.

Dale Burke, PE, President Infrastructure Solutions Group, LLC, addressed the Council explaining that while digging the water line a couple of sewer issues were found. He added that this Change Order would add two (2) manholes and approximately one hundred (100) feet of sewer line to correct those issues.

There was no discussion, and a motion to authorize the Mayor to sign Change Order No. 1 for Lone Hickory Cattle, LLC, in the amount of \$40,000.00 for DWSRF Project 8A, Stonewall Railroad Crossing was made by Councilor Boatright. The motion was seconded by Councilor Woodley, and the vote was taken as follows:

AYE: Councilmembers Boatright, Woodley, Roden, Beaty, Gilmore, Stone & Mayor Few

NAY: None

Mayor Few declared the motion carried.

4. Discussion and possible action authorizing the Mayor to sign Change Order Number 2 for Lone Hickory Cattle, LLC., in the amount of \$91,228.00 for DWSRF Project #13B, Main Water System Improvements. *(Lucky Huff, Director, Public Utilities)*

Executive Summary

Motion to authorize the Mayor to sign Change Order Number 2 for Lone Hickory Cattle, LLC., in the amount of \$91,228.00 for DWSRF Project #13B, Main Water System Improvements.

Dale Burke, PE President, Infrastructure Solutions Group, LLC addressed the Council explaining that this was Project 13B, Monroe to Comanche on Main Street. He stated that there were issues with turning the water off to connect the existing lines that come in from the sides, because the valves were not working. He added that majority of this change order was to install "Inserta Valves." He stated that to keep from shutting half of the City's water off, the valves would be installed live. He commented that a stop for the twenty-inch (20") line that comes through to the Hospital.

There was discussion concerning why these issues were not previously anticipated, a problem with a contractor on a previous project that would have addressed the twenty-inch (20") line, that amount of change orders that had been issued for the entire DWSRF projects, the amount of all the change orders that had been issued to Lone Hickory Cattle, LLC, issues with Lone Hickory Cattle, LLC, how the citizens were notified if and when their water would be off because of a project and having the contractor place door hangars on the citizens doors.

A motion to authorize the Mayor to sign Changer Order No. 2 for Lone Hickory Cattle, LLC, in the amount of \$91,228.00 for DWSRF Project #13B, Main Water System Improvements, was made by Councilor Gilmore. The motion was seconded by Vice-Mayor Beaty, and the vote was taken as follows:

AYE: Councilmembers Gilmore, Beaty, Woodley, Stone, Roden, Boatright & Mayor Few
NAY: None

Mayor Few declared the motion carried.

5. Discussion and possible action approving the purchase of a SCADA and Process Automation System from Worth Hydrochem of Oklahoma in the amount of \$178,000.00 for Water Treatment Plant Improvements. *(Lucky Huff, Director, Public Utilities)*

Executive Summary

Motion to authorize the Mayor to approve the purchase of a SCADA and Process Automation System from Worth Hydrochem of Oklahoma in the amount of \$178,000.00 for Water Treatment Plant Improvements.

Director Huff addressed the Council explaining that this item would upgrade the City's Water Treatment Plant's SCADA system. He stated that it would bring the Water Treatment Plant to the twenty-first (21st) century and improve the plants' capabilities. He reviewed the various systems that this would update and how it would optimize the employees' time.

Mayor Few inquired about the alarms and emergencies and how the system would address those.

Director Huff stated that there would be a call out system on several platforms. He added that the employee would have an iPad that could be carried with them.

There was no discussion, and a motion to authorize the Mayor to approve the purchase of a SCADA and Process Automation System from Worth Hydrochem of Oklahoma in the amount of \$178,000.00 for Water Treatment Plant Improvements, was made by Councilor Stone. The motion was seconded by Councilor Gilmore, and the vote was taken as follows:

AYE: Councilmembers Stone, Gilmore, Woodley, Roden, Boatright, Beaty & Mayor Few
NAY: None

Mayor Few declared the motion carried.

6. Discussion and possible action to create a solution to the issues at Lake McAlester. *(Billy Jack Boatright, Councilman)*

Executive Summary

Discussion.

Councilor Boatright addressed the Council stating that Mike Thomas had volunteered to maintain the City's lake property.

Mike Thomas addressed the Council stating that he and his son had been addressing issues at the lake since 2020. He asked the City to create a volunteer position.

There was discussion concerning a proposal to take care of the Park at the lake and lease the property to Mr. Thomas, what a position like this could be called, having to put something in writing, the City eventually buying Mr. Thomas out of the lease and if this were something the City could do.

Attorney Hammons explained that this was not something that could be done during tonight's meeting. He stated that if it were something the Council would like to consider they would need to direct the City Manager and himself and they would bring something back to the Council. Manager Andren commented that the City would lose control of what happens at the Park and there could be liability issues.

Director Basinger commented that the mowing at the lake was on a rotation like the other Parks. He stated that the Park was across the road from Mr. Thomas' property and the other property was the watershed. He added that there were individuals at the Lake that did look out for things that went on.

Mayor Few clarified that the motion would be to authorize the City Attorney and City Manager to negotiate with Mike Thomas and bring it back to Council for final consideration.

Councilor Boatright moved to authorize the City Attorney and City Manager to negotiate with Mike Thomas and bring those results and proposed document back to Council. The motion was seconded by Councilor Roden, and the vote was taken as follows:

AYE: Councilmembers Boatright, Roden, Stone, Beaty, Gilmore, Woodley & Mayor Few

NAY: None

Mayor Few declared the motion carried.

7. Discussion and possible action to approve a Resolution casting a vote for the Trustee office of the OkMRF Board to fill the expiring term for District 2 Trustee.

Executive Summary

Motion to approve the Resolution casting a vote for the Trustee office of the OkMRF Board to fill the expiring term for District 2 Trustee. *(Dave Andren, City Manager)*

Manager Andren addressed the Council explaining that there was an opening on the OkMRF Board and he had been approached by an individual that he knew. He stated that the individual was the Town Administrator of the Town of Carlton Landing and he had not received any other letters of interest.

There was no discussion, and a motion to approve RESOLUTION NO. 25-12, was made by Councilor Boatright. The motion was seconded by Vice-Mayor Beaty, and the vote was taken as follows:

AYE: Councilmembers Boatright, Beaty, Roden, Gilmore, Woodley, Stone & Mayor Few

NAY: None

Mayor Few declared the motion carried.

New Business

Any matter not known, or which could not have been reasonably foreseen prior to the time of posting the Agenda in accordance with Sec. 311.10, Title 25, Oklahoma State Statutes.

There was no new business.

Remarks and Inquiries by City Council

Councilor Gilmore stated that he had an issue with a piece of property at 318 E. Seminole. He stated that there was a vacant lot and it was a revolving door of abatement issues. He asked the

City to address this matter. He commented that there were a few issues on Strong Blvd. in the area of Kidding Around Academy.

Mayor Few commented that when the Staff report was given, some of those concerns might be addressed.

Councilor Stone stated that the City Landfill was still open Monday through Friday, 8:00 A.M. to noon. He encouraged residents to drop off their brush.

Councilor Roden commented that he had not received any calls the past three (3) weeks until 4:00 P.M. this afternoon.

Councilors Woodley, Boatright and Beaty did not have any comments or inquiries for the evening.

Mayor's Comments and Committee Appointments

Mayor Few commented on the scuttle over the pothole announcement, but he had mainly done that to make everyone aware of the McAlester Connect App and to help make the streets look better. He announced that Hope House was doing a cleaning supply drive, school started on Thursday and he encouraged everyone to avoid the school zones unless they were dropping students off or picking them up. He reminded everyone to be aware of the children around the schools and then commented that the City had received the keys to the new Airport Terminal.

Staff Reports

Tabetha Howell, Code Enforcement, addressed the Council thanking them for the opportunity to speak before them. She informed them that the Community Development Department now had two (2) Code Enforcement employees, which had been a tremendous help this summer. She then reviewed the various types of calls their department receives during the summer, how those calls were addressed, the number of calls that were received, the changes that had been made to the Abatement mowing, and the working relationship with the Pittsburg County Treasurer's Office. She explained that abatement process, how citations and invoices were managed and stressed that the department preferred to work with the citizens over issuing citations or invoices.

No action was taken on this item.

City Manager's Report

- Report on activities for the past two weeks.

Manager Andren stated that he did not have a report for the evening.

Recess Council Meeting

Vice-Mayor moved to recess the Regular Meeting and convene the Authorities. The motion was seconded by Councilor Gilmore.

There was no discussion, and the vote was taken as follows:

AYE: Councilmembers Beaty, Gilmore, Roden, Boatright, Woodley, Stone & Mayor Few
NAY: None

Mayor Few declared the motion carried, and the meeting was recessed at 7:31 P.M.

Reconvene Council Meeting

The Regular Meeting was reconvened at 7:32 P.M.

Councilor Woodley moved to recess the Regular Meeting for an Executive Session in accordance with Title 25, Section 307.b.1, discussing the employment, hiring, appointment, promotions, demotions, disciplining or resignation of any individual salaried public officer or employee, more specifically: J. David Andren, City Manager. The motion was seconded by Councilor Stone, and the vote was taken as follows:

AYE: Councilmembers Woodley, Stone, Boatright, Beaty, Gilmore, Roden & Mayor Few
NAY: None

Mayor Few declared the motion carried, and the meeting was recessed at 7:33 P.M.

Executive Session

Recess into Executive Session in compliance with Section Title 25 Section 307.b.1, et.seq. Oklahoma Statutes, to wit:

1. Motion to recess the regular meeting for an Executive Session in accordance with Title 25, Sec. 307.B.1; Discussing the employment, hiring, appointment, promotion, demotion, disciplining or resignation of any individual salaried public officer or employee, more specifically: J. David Andren, City Manager.

Reconvene Council Meeting

The Regular Meeting was reconvened at 9:32 P.M. Mayor Few reported that the Council had recessed the Regular Meeting for an Executive Session to discuss the employment, hiring, appointment, promotion, demotion, disciplining or resignation of any individual salaried public officer or employee, more specifically: J. David Andren, City Manager, in accordance with Title 25, Section 307.b.1 . Only that matter was discussed, no action was taken and the Council returned to open session at 9:32 P.M., and this constituted the Minutes of the Executive session.

Attorney Hammons clarified the motion.

Vice-Mayor Beaty moved to accept the resignation of City Manager Dave Andren and pay the appropriate severance. The motion was seconded by Councilor Woodley, and the vote was taken as follows:

AYE: Councilmembers Beaty, Woodley, Gilmore, Stone, Roden, Boatright & Mayor Few
NAY: None

Mayor Few declared the motion carried.

Attorney Hammons clarified the motion.

Councilor Gilmore moved to designate the Assistant City Manager as Interim City Manager until the position was filled. The motion was seconded by Councilor Roden, and the vote was taken as follows:

AYE: Councilmembers Gilmore, Roden, Woodley, Stone, Boatright, Beaty & Mayor Few
NAY: None

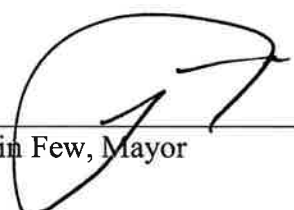
Mayor Few declared the motion carried.

Adjournment

There being no further business before the Council, Mayor Few declared the adjourned at 9:34




Cora Middleton, City Clerk


Justin Few, Mayor